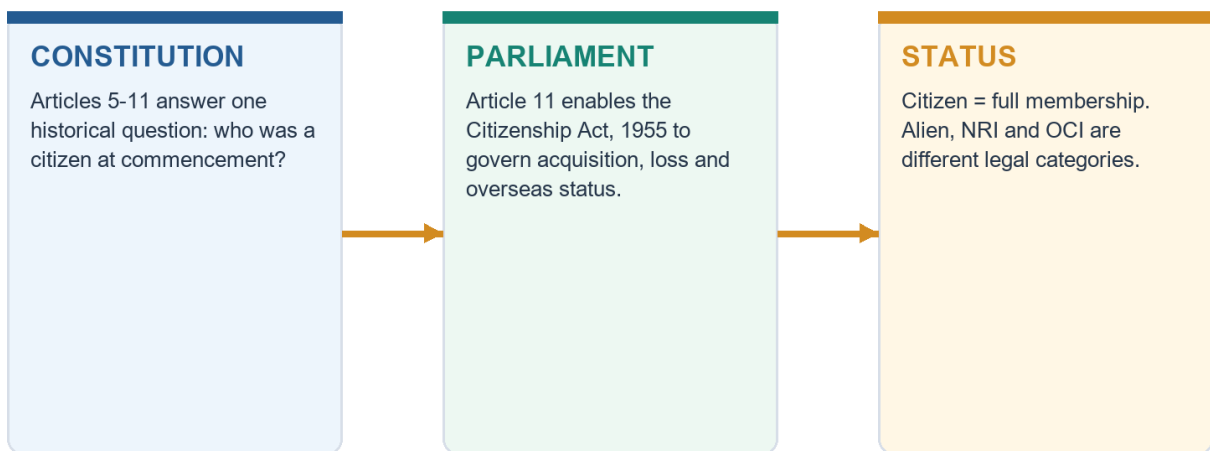


Citizenship

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

Citizenship: the membership architecture

Constitution at commencement -> Parliament -> present statutory status



Core exam rule: document, domicile, residence and citizenship are not synonyms.

Original deterministic study visual; labels are explanatory, not textual quotations.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

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Citizenship - Learner-v2 Source-Complete Learning Session

BASIC MCQS / REMEDIATION

Forty core diagnostic MCQs

Core MCQ 1. Which one of the following most accurately states the constitutional position of non-citizens?

- A. Articles 14 and 21 protect persons, while Articles 15, 16 and 19 are textually citizen-specific
- B. Every Fundamental Right is confined to citizens
- C. Article 19 protects every person lawfully present in India
- D. Article 14 protects citizens alone, but Article 15 protects all persons

Answer: A. Article 14 uses "person" and Article 21 uses "no person"; Articles 15, 16 and 19 expressly use citizen/citizens. A close option may exploit the false idea that all fundamental rights share one beneficiary formula.

Core MCQ 2. A person claimed citizenship under Article 5 at commencement solely because the person had lived in India for five years. What additional constitutional requirement was indispensable?

- A. Registration by an Indian consulate
- B. Domicile in the territory of India
- C. A permit for resettlement
- D. Descent from a grandparent born in undivided India

Answer: B. Article 5 required domicile plus one of birth, parentage or five years' ordinary residence. Residence alone was not the constitutional gateway.

Core MCQ 3. Which combination correctly describes an Article 6 migrant who came to India from Pakistan on or after 19 July 1948?

- A. Residence since migration alone
- B. Domicile plus five years immediately before commencement
- C. Registration before commencement after an application and at least six months' prior residence
- D. Automatic citizenship after ten years from detection

Answer: C. The post-19 July 1948 stream was registration-controlled. The ten-year detection rule belongs to Section 6A, not Article 6.

Core MCQ 4. Article 7's exception for a person who migrated to Pakistan after 1 March 1947 applies when the person

- A. returns on any tourist or transit permit
- B. has one parent born in India
- C. lives in India for five years after return
- D. returns under a permit for resettlement or permanent return and then uses the post-19 July Article 6 route

Answer: D. Article 7 first excludes the migrant and then creates a controlled exception. The constitutional phrase is resettlement or permanent return, not any permit.

Core MCQ 5. Article 8 primarily concerned

- A. persons of Indian origin ordinarily residing abroad who obtained consular/diplomatic registration
- B. persons born in India after 3 December 2004
- C. foreign spouses of OCI cardholders
- D. persons detected as foreigners in Assam

Answer: A. Article 8 is the commencement-era diaspora route. Modern OCI is a separate statutory foreign-national status.

Core MCQ 6. Which statement best captures Articles 10 and 11 together?

- A. Citizenship at commencement is immutable
- B. Continuance is subject to parliamentary law, and Parliament may regulate acquisition, termination and other citizenship matters
- C. State legislatures possess exclusive citizenship power
- D. Parliament may legislate only on naturalisation

Answer: B. Article 10 preserves continuity subject to law; Article 11 preserves broad parliamentary competence.

Core MCQ 7. A person was born in India on 2 July 1987. Which minimum statutory fact, apart from the Section 3(2) exceptions, would establish citizenship by birth?

- A. Five years' later residence in India
- B. Both parents had to be citizens
- C. Either parent was a citizen at the time of birth
- D. Consular registration within one year

Answer: C. The either-parent rule applies from 1 July 1987 until the 2003 amendment commenced on 3 December 2004.

Core MCQ 8. Which one is required for a person born outside India on or after 3 December 2004 to claim citizenship by descent?

- A. Residence in India for seven years
- B. Birth to an Indian father only
- C. Marriage to an Indian citizen
- D. Consular registration within one year, or later with Central Government permission, alongside the statutory controls

Answer: D. Parentage remains necessary but is no longer sufficient. Registration and the foreign-passport undertaking are high-value close-option details.

Core MCQ 9. Which person has a Section 5 registration route but does not become a citizen automatically from the described relationship?

- A. A foreign spouse of an Indian citizen who satisfies the prescribed seven-year residence calculation
- B. Every tourist born in a former princely State
- C. Every foreign employee of an Indian company
- D. Every OCI cardholder immediately upon receiving the card

Answer: A. Marriage creates an eligibility route, not citizenship by operation of marriage. Application, discretion, residence and oath remain.

Core MCQ 10. Under the general Third Schedule rule, naturalisation ordinarily requires

- A. five continuous years immediately before application
- B. twelve months immediately before application plus at least eleven aggregate years in the preceding fourteen-year window
- C. seven years immediately before application with no language requirement
- D. ten years from detection as a foreigner

Answer: B. The two residence limbs must be kept separate. CAA changes the aggregate limb for its specified class, not the basic architecture.

Core MCQ 11. Which statement about distinguished-service naturalisation is correct?

- A. Only the Supreme Court can waive residence
- B. No condition can ever be waived
- C. The Central Government may waive all or any Third Schedule conditions for distinguished service in listed fields
- D. The waiver is confined to Olympic medal winners

Answer: C. Section 6 expressly names science, philosophy, art, literature, world peace and human progress generally.

Core MCQ 12. Which category is outside Section 10(1)'s deprivation gate?

- A. A citizen by naturalisation
- B. A citizen by virtue only of Article 5(c)
- C. Some citizens by registration, subject to statutory exclusions
- D. A citizen by birth

Answer: D. Section 10 is category-limited. Citizens by birth and descent do not fall within its opening category.

Core MCQ 13. A full-age citizen makes a valid declaration giving up Indian citizenship. This is

- A. renunciation; a minor child also ceases but may resume by declaration within one year after attaining full age
- B. termination; the child can never resume
- C. deprivation; no declaration is necessary
- D. expatriation under Article 9 alone

Answer: A. Section 8 governs voluntary declaration. Wartime registration may be withheld.

Core MCQ 14. Termination under Section 9 is most directly linked to

- A. seven years' residence outside India
- B. voluntary acquisition of another country's citizenship
- C. a two-year sentence within five years of naturalisation
- D. constitutional disaffection

Answer: B. The other listed circumstances are potential deprivation grounds for eligible categories.

Core MCQ 15. Which one of the following is the best legal distinction?

- A. Citizenship and residence are synonyms
- B. Domicile is a State-created second citizenship
- C. Citizenship is membership, domicile is permanent legal home, and residence is factual presence
- D. Residence automatically confers the franchise

Answer: C. Residence can be relevant to enrolment or benefits but does not itself confer citizenship or voting.

Core MCQ 16. Which textual caveat is most accurate?

- A. Article 30 expressly says "citizens only"
- B. Article 29 protects every foreign tourist
- C. Articles 14 and 21 are citizen-only
- D. Article 30 uses "minorities", whereas Article 29 expressly uses citizen/citizens

Answer: D. This distinction prevents over-reliance on simplified textbook lists.

Core MCQ 17. Under Section 6A, Indian-origin persons who came from the specified territory to Assam before 1 January 1966 and met the residence condition were

- A. deemed citizens from 1 January 1966
- B. denied citizenship for ten years from detection
- C. governed by the CAA 2014 cut-off
- D. required to prove entry after 25 March 1971

Answer: A. The ten-year electoral exclusion belongs to the 1966-1971 detected stream.

Core MCQ 18. A Section 6A person who came between 1 January 1966 and before 25 March 1971, was detected as a foreigner and registered

- A. becomes a voter immediately on detection

- B. receives most citizen rights/obligations but is excluded from electoral rolls for ten years from detection, after which citizenship is deemed for all purposes
- C. remains permanently an alien
- D. is governed by Article 5 alone

Answer: B. Section 6A deliberately separates interim civil status from political enrolment.

Core MCQ 19. What did the controlling majority hold in In Re: Section 6A (2024)?

- A. Section 6A was invalid from inception
- B. Section 6A created unconstitutional dual citizenship
- C. Section 6A was constitutionally valid, although implementation machinery was inadequate
- D. The Assam cut-off was moved to 31 December 2014

Answer: C. Validity and enforcement were treated separately. The majority also called for monitoring and stronger implementation.

Core MCQ 20. Justice J.B. Pardiwala's sole dissent would have

- A. cancelled all citizenship ever granted under Section 6A
- B. upheld Section 6A without qualification
- C. replaced the 1971 cut-off with 1950
- D. invalidated Section 6A prospectively because temporal open-endedness and the detection design had become manifestly arbitrary

Answer: D. The dissent protected past grants and specified pending cases; it did not demand retrospective mass cancellation.

Core MCQ 21. Which is correct regarding OCI?

- A. It is a statutory foreign-national card status, not Indian citizenship or dual citizenship
- B. It confers the right to vote after five years
- C. It guarantees Article 16 public-employment equality
- D. It replaces the holder's foreign passport with an Indian passport

Answer: A. The 2021 notification expressly treats the OCI cardholder as a foreign national holding a foreign passport.

Core MCQ 22. Under the 2021 OCI notification, an OCI cardholder generally receives

- A. unrestricted parity with citizens in every field
- B. a lifelong multiple-entry visa, but special permission for listed research, missionary/Tabligh, mountaineering, journalistic and protected-area activities
- C. automatic eligibility for citizen-reserved educational seats
- D. a right to purchase agricultural land

Answer: B. OCI rights are notified and limited. Outside specified parity, the default is foreigner treatment.

Core MCQ 23. Which set exactly matches the CAA statutory class?

- A. All persecuted persons from every neighbouring country who entered before 2020
- B. All non-Muslims from South Asia
- C. Hindu, Sikh, Buddhist, Jain, Parsi or Christian persons from Afghanistan, Bangladesh or Pakistan who entered on/before 31 December 2014 and fall within the statutory exemption framework
- D. Every migrant from Bangladesh who entered before 24 March 1971

Answer: C. Community, country, date and exemption are cumulative elements. The Assam cut-off belongs to a different legal regime.

Core MCQ 24. Which statement about CAA operation is correct?

- A. The Rules were first notified in 2026
- B. The CAA automatically confers citizenship without application

- C. Section 6B applies uniformly throughout every Sixth Schedule and Inner Line area
- D. Rules 2024 create an electronic application-verification-oath-decision process, and the aggregate naturalisation period is reduced from eleven to five for the specified class while the immediate twelve-month limb remains

Answer: D. This option combines the procedural and residence details that close options often split incorrectly.

Core MCQ 25. What is the safest statement about the Immigration and Foreigners (Exemption) Order, 2025?

- A. It gives specified six-community entrants from Afghanistan, Bangladesh and Pakistan who entered by 31 December 2024 a passport/visa exemption under the new immigration regime, but it does not shift the CAA citizenship cut-off from 31 December 2014
- B. It amends Section 6B and grants automatic citizenship to every protected entrant
- C. It repeals the Citizenship Act, 1955
- D. It converts OCI into citizenship

Answer: A. The 2025 Order operates under the Immigration and Foreigners Act, 2025. The Citizenship Act's CAA class and its 31 December 2014 entry cut-off remain unchanged.

Core MCQ 26. Why is the statement "every citizen can vote as a Fundamental Right" incorrect?

- A. Only naturalised citizens can vote
- B. Voting is a statutory right: citizenship is necessary, but age, ordinary residence, enrolment and disqualification rules under electoral law also apply
- C. Article 19 expressly creates an unconditional vote
- D. Voting is available to resident foreigners

Answer: B. Citizenship is a threshold under electoral law, not a self-executing franchise. Enrolment and other statutory conditions remain necessary.

Core MCQ 27. Which distinction is textually correct?

- A. Article 15 prohibits every residence preference because it lists residence
- B. Article 16(3) allows every State legislature independently to prescribe residence for public employment
- C. Article 15(1) lists place of birth, not residence; residence classifications remain subject to Article 14 and other constitutional limits
- D. Residence and place of birth are constitutional synonyms

Answer: C. A close option often substitutes residence for place of birth. The omission does not make every residence classification valid; equality review still applies.

Core MCQ 28. Which statement correctly describes former Article 35A after the 2019 constitutional changes?

- A. It remains the principal current source of J&K citizenship
- B. It created a second sovereign citizenship for J&K
- C. It was enacted by the J&K legislature under Article 11
- D. It is not a current constitutional exception; present local domicile rules do not create separate State citizenship

Answer: D. Historical permanent-resident privileges must not be written as current constitutional law.

Core MCQ 29. Section 3(2) excludes citizenship by birth in India in which situation?

- A. A parent is an accredited foreign envoy with diplomatic immunity and is not an Indian citizen, or an enemy-alien parent and the birth occurs in enemy-occupied territory
- B. Either parent was born outside India
- C. The child later resides abroad
- D. The parents use a foreign language at home

Answer: A. These are the precise statutory exceptions; they are not a general parental-nationality test for every period.

Core MCQ 30. For a person born outside India before 10 December 1992, the original descent rule ordinarily looked to

- A. either grandparent alone
- B. the father's Indian citizenship, subject to the statutory framework
- C. seven years' residence in India
- D. an OCI card held by either parent

Answer: B. The gender-neutral either-parent rule applies from 10 December 1992.

Core MCQ 31. In Section 5 registration routes using the seven-year ordinary-residence formula, "seven years" generally means

- A. seven uninterrupted years immediately before application
- B. any seven years in the applicant's lifetime
- C. twelve months immediately before application plus at least six aggregate years in the preceding eight years
- D. five years after receiving an OCI card with no other condition

Answer: C. UPSC may test the calculation rather than the headline number. Eligibility still does not guarantee registration.

Core MCQ 32. Which citizen is outside Section 10(1)'s deprivation category gate?

- A. A naturalised citizen
- B. A citizen solely through Article 5(c)
- C. A covered citizen by registration
- D. A citizen by descent

Answer: D. Section 10 is not a universal cancellation power; birth and descent citizens fall outside its opening category.

Core MCQ 33. What follows when a full-age citizen's renunciation declaration is registered?

- A. The person's minor child also ceases to be a citizen, but may resume by declaration within one year after attaining full age
- B. Every adult relative automatically loses citizenship
- C. The declaration is legally identical to deprivation
- D. The minor child can never resume citizenship

Answer: A. The minor-child consequence and limited resumption window are exact Section 8 points.

Core MCQ 34. Which statement about OCI cancellation is correct?

- A. It is impossible once a lifelong visa is issued
- B. Section 7D supplies listed grounds and requires a reasonable opportunity of hearing
- C. Only Parliament may cancel an individual registration by statute
- D. Cancellation automatically makes the person an Indian citizen

Answer: B. OCI is statutory and conditional; fraud, specified offences and security/public-interest grounds are among the listed triggers.

Core MCQ 35. Under Section 6B, which statement is correct?

- A. Filing an application itself retrospectively makes the applicant a citizen
- B. All pending proceedings abate on portal registration
- C. On grant, the person is deemed a citizen from the date of entry, and specified pending proceedings abate on conferment-not merely on application
- D. The certificate creates a separate State citizenship

Answer: C. The distinction between application and grant prevents a predictable close-option error.

Core MCQ 36. The territorial exclusions from Section 6B cover

- A. every State in the Northeast

- B. only Assam
- C. every border district in India
- D. Sixth Schedule tribal areas in Assam, Meghalaya, Mizoram and Tripura, and areas under the notified Inner Line

Answer: D. The statutory exclusions are specific; "the whole Northeast" is inaccurate.

Core MCQ 37. Which statement about an Electoral Photo Identity Card is most accurate?

- A. Electoral enrolment legally presupposes citizenship, but an EPIC is not an irrebuttable citizenship certificate if the enrolment itself is disputed or erroneous
- B. It proves domicile in every State
- C. It replaces a citizenship certificate under the 1955 Act
- D. It grants Article 19 rights to a foreigner

Answer: A. A document may be evidence in administration without conclusively deciding status in every legal proceeding.

Core MCQ 38. Which proposition about an Indian passport is safest?

- A. It is irrelevant to nationality
- B. It is strong ordinary evidence of nationality and travel status, but should not be described as an irrebuttable citizenship certificate in every conceivable dispute
- C. It automatically proves State domicile
- D. Every travel document under the Passports Act proves Indian citizenship

Answer: B. Exam answers should distinguish strong evidence from universal conclusive proof.

Core MCQ 39. Why can a citizenship decision be judicially reviewed even though citizenship is not a Fundamental Right?

- A. Article 11 converts citizenship into an unreviewable parliamentary privilege
- B. Only naturalisation decisions are reviewable
- C. Statutory classifications and procedures remain subject to Articles 14 and 21, natural justice and constitutional judicial review
- D. Every applicant has a Fundamental Right to citizenship

Answer: C. Statutory status does not mean constitutional immunity; review tests legality, equality and fair procedure.

Core MCQ 40. Which is the safest current-status sentence as of 21 August 2026?

- A. The Supreme Court has finally struck down the CAA
- B. The Supreme Court has finally upheld every part of the CAA
- C. The 2025 immigration law moved the CAA citizenship cut-off to 2024
- D. The CAA and 2024 Rules operate; February and March 2026 orders prepared the challenge batch for final hearing, but a bounded official search located no final constitutional judgment

Answer: D. Operative legislation, procedural hearing orders and final constitutional adjudication must be kept separate.

Eight remedial MCQs for recurring traps

Remedial MCQ 41. A student writes, "Aadhaar appears in a CAA Rules document list, so Aadhaar proves Indian citizenship." The best correction is

- A. Aadhaar may evidence entry/presence for that application schedule, but the Aadhaar framework says it does not by itself prove citizenship or domicile
- B. Aadhaar proves citizenship only in Assam
- C. Aadhaar proves citizenship if issued before 2014
- D. Aadhaar and citizenship certificate are legally identical

Answer: A. The evidentiary purpose of a document must be kept separate from the legal status being decided.

Remedial MCQ 42. A candidate states, "Article 9 by itself universally bans every form of dual status in every later case." The precise correction is

- A. India allows full dual citizenship through OCI
- B. Article 9 directly qualifies Articles 5, 6 and 8 at commencement; the current single-citizenship result also rests on the Citizenship Act, especially Section 9, and OCI is not citizenship
- C. Article 9 has been repealed
- D. Article 9 applies only to State domicile

Answer: B. The conclusion of no dual Indian citizenship is correct, but the legal explanation must not detach Article 9 from its text and statutory continuation.

Remedial MCQ 43. A student says deprivation applies to every citizen whenever the Government alleges disloyalty. Which correction is best?

- A. Deprivation applies only to citizens by birth
- B. No citizen can ever be deprived
- C. Section 10 first limits the categories against whom the power exists, and only then applies listed grounds, public-good satisfaction, notice and inquiry safeguards
- D. Deprivation is automatic on a police complaint

Answer: C. Category, ground and procedure are separate statutory gates.

Remedial MCQ 44. A candidate writes that all entrants before 31 December 2014 are protected by Section 6A. The correction is

- A. Section 6A uses the 2014 cut-off only for OCI
- B. Section 6A has no date
- C. Section 6A applies throughout India
- D. Section 6A's Assam stream ends before 25 March 1971; 31 December 2014 is the CAA entry cut-off for its specified class

Answer: D. Mixing the 1971 and 2014 dates is among the most predictable UPSC traps.

Remedial MCQ 45. A student says, "The 2024 Section 6A judgment struck the provision down because implementation was poor." The correction is

- A. The 4:1 majority upheld it while separately issuing implementation directions; only the dissent favoured prospective invalidity
- B. The Court did not decide validity
- C. Parliament repealed Section 6A during the case
- D. The majority adopted the dissent

Answer: A. Implementation criticism is not the same as a holding of invalidity.

Remedial MCQ 46. A candidate describes an OCI cardholder as "an Indian citizen residing abroad." The correct category is

- A. Resident citizen
- B. Foreign national with a statutory OCI card; an NRI, by contrast, remains an Indian citizen abroad
- C. Stateless person
- D. Citizen by descent

Answer: B. OCI and NRI answer different questions: nationality versus residence.

Remedial MCQ 47. A student states that the CAA's five-year rule eliminates every other naturalisation condition. The correction is

- A. It eliminates the oath only
- B. It applies to every foreigner

- C. It substitutes five for eleven in the aggregate residence/service limb for the specified class; other statutory qualifications continue
- D. It applies only to Section 6A

Answer: C. The Rules and Third Schedule must be read together.

Remedial MCQ 48. A candidate writes, "State domicile proves that India has multiple citizenships." The best response is

- A. Every State creates its own passport
- B. State legislatures control Article 11
- C. Domicile and citizenship are identical
- D. Local residence/domicile terminology and constitutional regional safeguards do not create a separate State citizenship

Answer: D. India uses one national membership with bounded regional asymmetry.

PYQS AND ANSWER PRACTICE

PYQ provenance audit

PYQ	Verification status	Treatment
2018 Prelims GS-I Q12	Exact text read from local official Set-C paper; direct local official key unavailable	Included as a genuine cross-topic citizenship-proof PYQ; answer labelled inferred
2021 Prelims GS-I Q89	Exact text read from local official paper and routed directly to Citizenship; direct local official key unavailable	Included as the direct owner PYQ; answer labelled inferred

[LIMIT] Repository-wide 2018-2026 routing/integration-ledger searches and local official-paper checks located no additional genuinely direct Citizenship PYQ and no direct Mains PYQ. The six Mains questions below are explicitly original.

PYQ 1. Prelims 2018, GS Paper I, Question 12 - official local paper; cross-topic citizenship-proof relevance

Question: Consider the following statements:

1. Aadhaar card can be used as a proof of citizenship or domicile.
2. Once issued, Aadhaar number cannot be deactivated or omitted by the Issuing Authority.

Which of the statements given above is/are correct?

- A. 1 only
- B. 2 only
- C. Both 1 and 2
- D. Neither 1 nor 2

INFERRED ANSWER - NOT OFFICIALLY VERIFIED: D. Neither 1 nor 2. Confidence: high.

Solution: Statement 1 is false. Section 9 of the Aadhaar Act and UIDAI's official formulation make clear that Aadhaar does not by itself confer or prove citizenship or domicile. Statement 2 is false because the Aadhaar framework permits deactivation or omission in prescribed circumstances. The question was read from the local official 2018 Set-C paper, but a usable local official answer key was not available; the key is therefore labelled as a reasoned inference rather than an official UPSC answer.

Why this is a strong solution: It tests each statement independently, names the governing statutory/UIDAI control and keeps identity evidence separate from citizenship status.

PYQ 2. UPSC Prelims 2021, GS Paper I, Question 89 - verbatim-verified from the local official paper

Question: With reference to India, consider the following statements:

1. There is only one citizenship and one domicile.
2. A citizen by birth only can become the Head of State.
3. A foreigner once granted the citizenship cannot be deprived of it under any circumstances.

Which of the statements given above is/are correct?

- A. 1 only
- B. 2 only
- C. 1 and 3
- D. 2 and 3

INFERRED ANSWER - NOT OFFICIALLY VERIFIED: A. 1 only. Confidence: high.

Solution: Statement 1 is correct. India has one Indian citizenship, and *Pradeep Jain* explains the constitutional idea of one domicile in India rather than separate State domiciles. Statement 2 is wrong because Article 58 requires the President to be a citizen of India; it does not impose a citizenship-by-birth condition. Statement 3 is wrong because Section 10 permits deprivation of defined categories of citizens on listed grounds and through prescribed safeguards. The local repository does not hold the official 2021 Prelims answer key, so this solution is an inference from the Constitution, statute and judgment, not an official UPSC key.

Why this is a strong solution: It tests each statement independently, names the controlling constitutional/statutory rule and does not convert a high-confidence inference into an official answer.

Six original solved Mains models

Original 10-marker 1: Distinguish citizenship, domicile and residence. Why does the distinction matter in Indian constitutional law? (150 words)

Model answer. Thesis: Citizenship is legal membership of India; domicile is a person's permanent legal home supported by residence and intention; residence is factual or ordinary physical presence. **Evidence:** Articles 5-11 and the Citizenship Act govern membership. Article 5 used domicile in India as a commencement gateway. *Pradeep Jain v. Union of India* stressed one Indian citizenship and one Indian domicile, while electoral law and Sections 5-6 of the Citizenship Act use ordinary residence for constituency or acquisition purposes. **Analysis:** The distinction prevents three errors. First, a State residence certificate cannot create State citizenship. Second, long residence does not automatically produce citizenship. Third, political rights require citizenship even when residence supplies an additional condition, as with electoral registration. **Qualification:** The Constitution still permits bounded regional protection through Articles 16(3), 19(5) and 371-based arrangements. **Conclusion:** India combines one political membership with differentiated residence-based administration; confusing the categories either overstates local preference or understates national citizenship.

Why this earns marks: It defines all three terms, uses Article 5, *Pradeep Jain* and specific constitutional exceptions, and ends with a qualified rather than absolute conclusion.

Original 10-marker 2: Explain why OCI is not dual citizenship. Evaluate the logic of its principal rights and restrictions. (150 words)

Model answer. Thesis: OCI is a statutory foreign-national card status under Sections 7A-7D, not Indian citizenship. **Evidence:** The 2021 MHA notification describes an OCI cardholder as a foreign national holding a foreign passport and grants a lifelong multiple-entry visa, limited parity in fees, NRI-equivalent access in specified education/property/professional fields and FRRO exemption. Section 7B withholds the vote, legislative membership, Presidency/Vice-Presidency, judgeship and Article 16 public-employment equality. **Analysis:** The design supports diaspora mobility, investment and cultural connection without creating competing political allegiance. The restrictions track the distinction between social-economic access and democratic authorship. **Qualification:** OCI is not secure against all change: rights depend on notification and registration can be cancelled under Section 7D with a hearing. **Conclusion:** OCI is calibrated external membership - deeper than an ordinary visa, but deliberately short of nationality and political membership.

Why this earns marks: It names the statutory sections and 2021 notification, links each right/restriction to a design rationale, and avoids the "half citizenship" cliché.

Original 15-marker 1: The Constitution settled citizenship at commencement but left its future architecture to Parliament. Discuss. (250 words)

Model answer. Thesis: Part II creates a founding membership settlement, while Articles 10-11 deliberately make citizenship a continuing statutory project. **Constitutional settlement:** Article 5 uses domicile plus birth, parentage or five-year residence. Article 6 regularises specified migrants from Pakistan, dividing them at 19 July 1948. Article 7 excludes post-1 March 1947 migrants to Pakistan but permits a resettlement/permanent-return route. Article 8 enables consular registration of persons of Indian origin abroad. Article 9 disqualifies voluntary foreign citizenship for the specified commencement routes. **Parliamentary continuation:** Article 10 continues status subject to law; Article 11 preserves Parliament's power over acquisition, termination and all citizenship matters. The Citizenship Act, 1955 consequently supplies five acquisition routes - birth, descent, registration, naturalisation and incorporation - and three loss routes - renunciation, termination and deprivation. **Analysis:** The arrangement gives flexibility to respond to changing migration, diaspora and territorial conditions, illustrated by Section 6A, OCI and CAA amendments. **Qualification:** Parliamentary breadth is not constitutional immunity. Article 14 review, Article 21 procedure and natural justice constrain classification, deprivation and cancellation. The 2024 Section 6A judgment demonstrates this duality: wide legislative competence, but searching constitutional review and implementation directions. **Conclusion:** The Constitution fixed the Republic's first citizenry; Parliament continuously defines the membership boundary, under constitutional supervision.

Why this earns marks: It answers both halves, covers every Article without becoming a list, links Article 11 to named statutory institutions and uses current case law as analysis.

Original 15-marker 2: Section 6A is constitutionally valid, but its implementation remains a governance challenge. Analyse in light of the 2024 Constitution Bench judgment. (250 words)

Model answer. Thesis: The 4:1 judgment separates the validity of Assam's historical settlement from the adequacy of its enforcement. **Scheme:** Section 6A deems pre-1966 Indian-origin entrants citizens; subjects the 1966-before-25 March 1971 stream to detection, registration and a ten-year electoral exclusion; and protects no post-cut-off entrant. **Majority:** Chief Justice Chandrachud and Justice Surya Kant's three-judge opinion upheld Parliament's Article 11 competence and found Assam plus the 1971 date to be a reasonable classification. They rejected challenges under Articles 6, 7, 9, 14, 21, 29, 326 and 355; Article 29 protects the capacity to conserve culture, and destruction of that capacity was not proved. **Governance deficit:** Justice Surya Kant nevertheless found tribunals and statutory machinery inadequate, stressed detection/deportation of post-1971 entrants, effective use of complementary laws and continuing judicial monitoring. **Dissent:** Justice Pardiwala argued that the absence of temporal closure and State-centred detection burden made Section 6A(3) manifestly arbitrary with time; he would invalidate prospectively while preserving past grants. **Assessment:** The dissent identifies design risk, but the majority controls. Administrative failure cannot be casually converted into invalidity; nor can validity excuse indefinite non-enforcement. **Conclusion:** Section 6A survives as law, but legitimacy now depends on timely, rights-respecting and reviewable implementation.

Why this earns marks: It gives the exact streams, majority holdings, sole dissent and a reasoned validity-versus-administration verdict.

Original 20-marker 1: Critically examine the Citizenship (Amendment) Act, 2019 as a classification under Article 14 and as an instrument of humanitarian policy. (250 words)

Model answer. Thesis: CAA is an operative humanitarian facilitation whose constitutional legitimacy depends on whether its religion-country-date class is a reasonable response or an impermissibly under-inclusive citizenship preference. **Statutory design:** The law covers Hindus, Sikhs, Buddhists, Jains, Parsis and Christians from Afghanistan, Bangladesh and Pakistan who entered on/before 31 December 2014 and fall within specified exemptions. Section 6B enables registration/naturalisation, deems citizenship from entry upon grant and excludes Sixth Schedule tribal and Inner Line areas. The Third Schedule's aggregate period falls from eleven to five years; Rules 2024 require electronic application, documentary verification, oath and Empowered Committee decision. **Article 14 criticism:** Religion is explicit. Critics cite excluded Muslim sects and persecuted groups from other neighbours, secularism as a basic feature and the possibility that country selection is under-inclusive. Assam adds a federal-cultural objection: the 2014 date departs from the Accord's 1971 settlement. **Defence:** The State frames a narrow remedial class tied to Partition and vulnerable minorities in three selected neighbours; legislatures may address problems in stages. No existing citizen loses status and ordinary citizenship routes remain. Territorial exclusions show regional accommodation. **Assessment:** Humanitarian purpose does not end equality review; equally, under-inclusion does not automatically invalidate classification. The Court must test comparator, differentia, nexus and arbitrariness. **Conclusion:** Because the Act and 2024 Rules operate while constitutional challenges remain pending, the sound verdict is conditional: humanitarian legitimacy will endure only if the classification is judicially accepted as precise, non-arbitrary and secularism-compatible.

Why this earns marks: It states the exact law, separates aggregate and immediate residence, applies both sides of Article 14, adds Assam and current status, and avoids predicting the pending case.

Original 20-marker 2: India's single citizenship coexists with differentiated regional protections. Does this strengthen or weaken the Union? Discuss. (250 words)

Model answer. Thesis: Single citizenship supplies equal national membership; differentiated protections can strengthen that membership when they are constitutionally bounded, but weaken it when residence becomes a proxy for exclusion. **Integrative core:** Unlike classical federations with State citizenship, India gives one citizenship, one national franchise structure and interstate mobility under Article 19. *Pradeep Jain* rejects a separate State domicile in the constitutional sense. This lowers internal membership barriers and supports fraternity and a national labour market. **Protective asymmetry:** Article 16(3) allows Parliament to prescribe residence conditions for specified public posts; Article 19(5) permits tribal-protection restrictions; Articles 371A-371J protect customary law, land, local cadres or regional opportunity. Section 6A is another historical asymmetry, but it creates Indian rather than Assam citizenship. **Benefits:** These devices can reduce domination fears, preserve indigenous institutions and make national membership credible in culturally vulnerable regions. **Risks:** Excessive local quotas, vague "domicile" barriers or political hostility to interstate migrants can hollow out equal citizenship and conflict with Articles 14, 16(2) and 19. The former Article 35A debate illustrates how entrenched local privilege can become constitutionally contested. **Test:** A valid safeguard should have constitutional/statutory authority, a legitimate vulnerability or governance objective, proportional means, temporal review and no claim to a separate nationality. **Conclusion:** Differentiation strengthens the Union when it secures participation within common citizenship; it weakens the Union when it converts residence into hereditary political closure.

Why this earns marks: It uses named Articles, *Pradeep Jain*, Section 6A and a proportionality-style test, while balancing integration against regional vulnerability.